

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201701903	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 02/27/2017 10:00 PM, Friday, 03/10/2017 12:00 AM	Location of Incident: § 87(2)(b) ; 69th Precinct Stationhouse	18 Mo. SOL 8/27/2018	Precinct: 69
Date/Time CV Reported Fri, 03/10/2017 11:12 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/10/2017 11:12 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Woods	21755	929581	069 PCT
2. POM Jeffrey Koncelik	11991	948735	069 PCT
3. Officers			069 PCT
4. An officer			069 PCT
5. POM John Gergis	04088	950487	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Priscilla Valentin	29827	941827	069 PCT
2. LT Joseph Shirvis	00000	924489	069 PCT
3. POF Stephanie Toussaint	11464	958129	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jeffrey Koncelik	Abuse: On February 27, 2017, at the intersection of § 87(2)(b) , in Brooklyn, Police Officer Jeffrey Koncelik stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Jeffrey Koncelik	Abuse: On March 10, 2017, at the intersection of § 87(2)(b) in Brooklyn, Police Officer Jeffrey Koncelik stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Matthew Woods	Abuse: On March 10, 2017, at the intersection of § 87(2)(b) in Brooklyn, Police Officer Matthew Woods stopped the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Jeffrey Koncelik	Abuse: On March 10, 2017, at the intersection of § 87(2)(b) in Brooklyn, Police Officer Jeffrey Koncelik interfered with § 87(2)(b)'s use of a recording device.	D . Unfounded
E . POM John Gergis	Discourtesy: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . Officers	Discourtesy: On March 10, 2017, at the 69th Precinct stationhouse, officers spoke discourteously to § 87(2)(b)	F . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
G . POM John Gergis	Off. Language: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis made remarks to § 87(2)(b) based upon race.	G . Unsubstantiated
H . An officer	Abuse: On March 10, 2017, at the 69th Precinct stationhouse, an officer interfered with § 87(2)(b)'s use of a recording device.	H . Officer(s) Unidentified
I . An officer	Force: On March 10, 2017, at the 69th Precinct stationhouse, an officer used physical force against § 87(2)(b)	I . Officer(s) Unidentified
J . POM John Gergis	Abuse: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis threatened to arrest § 87(2)(b)	J . Unsubstantiated

Case Summary

On March 10, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System on behalf of himself.

At approximately 10:00 p.m. on February 27, 2017, § 87(2)(b) and § 87(2)(b) were driving in the vicinity of § 87(2)(b) in Brooklyn. After making a U-turn, they were pulled over by PO Jeffrey Koncelik of the 69th Precinct (**Allegation A**). PO Koncelik told § 87(2)(b) that he was stopped because he made a U-turn in a business district. PO Koncelik then released § 87(2)(b) and § 87(2)(b) without issuing them a summons.

At approximately 10:00 p.m. on March 10, 2017, § 87(2)(b) was driving by himself in the vicinity of § 87(2)(b) in Brooklyn. During this incident, § 87(2)(b) was driving a vehicle with a temporary Alabama license plate, printed on paper, displayed in one of its windows. After making a U-turn, § 87(2)(b) was pulled over by PO Koncelik. PO Koncelik was accompanied at the time by PO Matthew Woods, also of the 69th Precinct (**Allegations B and C**). § 87(2)(b) was informed that he had been pulled over for making a U-turn in a business district. § 87(2)(b) began to record the officers on his cell phone. PO Koncelik allegedly shined his flashlight directly into § 87(2)(b) cell phone, causing glare and obscuring the recording (**Allegation D**). The officers released § 87(2)(b) without issuing him a summons.

§ 87(2)(b) feeling that he was being deliberately targeted by these repeated vehicle stops, drove directly to the 69th Precinct stationhouse in order to speak to a supervisor. There, § 87(2)(b) spoke to Lt. Joseph Shirvis, the desk officer. § 87(2)(b) told Lt. Shirvis that he felt that officers were harassing him. During this conversation, § 87(2)(b) became upset and accused Lt. Shirvis of unfairly taking the side of the police. Several officers, who were standing nearby, including PO John Gergis, told § 87(2)(b) to leave the stationhouse. Three of these officers, including PO Gergis, allegedly told § 87(2)(b) to “get the fuck out” (**Allegations E and F**). PO Gergis also allegedly called § 87(2)(b) a “fucking bastard” and a “fucking monkey” (**Subsumed in Allegation E, Allegation G**). § 87(2)(b) took out his cell phone to record the officers inside of the stationhouse. One of the officers told § 87(2)(b) that he was not allowed to record inside of the stationhouse. The officer then slapped the phone out of § 87(2)(b) hand (**Allegation H**). An officer then pushed § 87(2)(b) from behind (**Allegation I**). PO Gergis told § 87(2)(b) “Get the fuck out of here before we lock you up” (**Subsumed in Allegation E, Allegation J**). § 87(2)(b) then walked out of the stationhouse. He was not arrested or issued a summons.

§ 87(2)(b) provided cell phone footage that he recorded during the vehicle stop on March 10, 2017. It has been attached in IA #30 (See Board Review #01: Video Footage) and summarized in IA #34 (See Board Review #02: Video Summary). A SnagIt capture depicting part of the incident has been attached below. No other video footage was found for the other vehicle stop or § 87(2)(b) visit to the 69th Precinct stationhouse.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) complaint was ineligible for mediation due to the large number of officers involved.
- As of July 20, 2017, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office in regards to this incident.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed six previous CCRB complaints (See Board Review #04: Civilian CCRB Histories):
 - § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- This is the first CCRB complaint filed by or on behalf of § 87(2)(b) (See Board Review #04: Civilian CCRB Histories).
- PO Koncelik has been a member of the service for seven years. These are the first CCRB allegations made against him.
- PO Woods has been a member of the service for fifteen years and there are no substantiated CCRB allegations against him. The only previous allegation against him, for physical force, was closed as victim uncooperative.
- PO Gergis has been a member of the service for six years and there are no substantiated CCRB allegations against him. He has been the subject of nine other allegations resulting from a single case, including one other discourtesy allegation. That case is currently under investigation. These are the first physical force, threat of arrest, property damage and interference with a recording device allegations made against PO Gergis.

Findings and Recommendations

Explanation of Subject Officer Identification

- In his initial complaint left with the Call Processing System, § 87(2)(b) identified one of the officers he interacted with at the stationhouse as PO “Gergis.” This corresponds to PO John Gergis of the 69th Precinct. In his subsequent statements, § 87(2)(b) stated that the officer who cursed at him, used a racial slur against him and threatened to arrest him had identified himself as “Georgio.” A search of the CTS database found no officers assigned to the 69th Precinct with a first or last name “Georgio” or “Giorgio.” § 87(2)(b) described this officer as a 5’6” white or Hispanic male in his thirties. PO Gergis is a § 87(2)(b) year-old, § 87(2)(b) white male. He confirmed that he was one of the officers who interacted with § 87(2)(b) at the stationhouse. § 87(2)(g)

- § 87(2)(b) also alleged that at least six other uniformed officers were standing near the front desk when he was speaking to Lt. Shirvis. Along with PO Gergis, two of them told him to “get the fuck out.” § 87(2)(b) described one as a 5’7”, 200-pound white male with dark hair and the other only as a white male. He did not know these officers’ names or shield numbers. § 87(2)(b) was unable to describe any of the other officers who were near the front desk.

The roll call identified PO Priscilla Valentin as the telephone switchboard operator and Lt. Shirvis as the desk officer. No other officers were listed as being assigned to the front desk. It also identified PO Stephanie Toussaint as PO Gergis’ partner (See Board Review #05: Roll Call). PO Toussaint and PO Valentin are both female. The interrupted patrol log showed no officers entering the stationhouse between 9:02 p.m. and 10:57 p.m. (See Board Review #06: Interrupted Patrol Log). None of the officers interviewed recalled any other officers being present in the stationhouse during § 87(2)(b) visit beyond those already identified. None of them recalled any officers using profanity.

§ 87(2)(g)

- § 87(2)(b) also alleged that several officers followed him as he walked out of the stationhouse. He did not recall how many officers were in this group, but recalled that it included PO Gergis and the two officers that he alleged had used profanity towards him. As he left, he took out his cell phone to record the incident. An officer slapped the phone from his hand. § 87(2)(b) did not recall which of the gathered officers took this action. An officer also pushed § 87(2)(b) from behind. § 87(2)(b) did not see which officer pushed him.

All of the officers interviewed denied seeing any officer take these actions. § 87(2)(g)

earlier, the investigation was unable to identify several of the officers who were present at the front desk during the incident. § 87(2)(g)

Allegations Not Pleaded

- **Abuse of Authority – Property Damage:** § 87(2)(b) alleged that after the unidentified officer slapped his phone out of his hand, the phone fell to the ground. The screen on the phone shattered upon impact. § 87(2)(g)

Allegation A –Abuse of Authority: On February 27, 2017, at the intersection of § 87(2)(b) § 87(2)(b), in Brooklyn, Police Officer Jeffrey Koncelik stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B –Abuse of Authority: On March 10, 2017, at the intersection of § 87(2)(b) § 87(2)(b), in Brooklyn, Police Officer Jeffrey Koncelik stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C –Abuse of Authority: On March 10, 2017, at the intersection of § 87(2)(b) § 87(2)(b), in Brooklyn, Police Officer Matthew Woods stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(b) During this second vehicle stop, § 87(2)(b) was stopped by PO Koncelik and PO Woods after he performed a U-turn in front of a convenience store located at § 87(2)(b) in Brooklyn. § 87(2)(b) was alone during this second incident. He was not issued a summons or placed under arrest after he was pulled over. During the incident, § 87(2)(b) was driving a vehicle with a temporary Alabama license plate, printed on paper, displayed in one of the windows.

§ 87(2)(b) was interviewed at the CCRB on April 5, 2017 (See Board Review #07: § 87(2)(b) Statement). He alleged that he was pulled over by the police on two separate dates while making trips to a convenience store located at § 87(2)(b) in Brooklyn. § 87(2)(b) was uncertain of the date of the first stop, believing it to have occurred at approximately 10:00 p.m. on February 27, 2017. He was certain that the second stop occurred at approximately 10:00 p.m. on March 10, 2017. § 87(2)(b) was driving on both occasions. His neighbor, § 87(2)(b) was riding with him during the first vehicle stop, but he was alone during the second stop. While § 87(2)(b) denied committing any traffic infractions before either stop, he acknowledged that he made U-turns along § 87(2)(b) in front of the convenience store at § 87(2)(b) on both occasions. After making these U-turns, § 87(2)(b) was pursued by officers and pulled over. PO Koncelik conducted both vehicle stops. § 87(2)(b) did not know if PO Koncelik had a partner during the first incident, but recalled that he was with PO Woods during the second incident on March 10, 2017. During both vehicle stops, the officers that § 87(2)(b) interacted with told him that he had been pulled over for making a U-turn in a “busy area.” PO Woods also indicated during the

second stop that § 87(2)(b) had been pulled over because of the temporary license plate displayed on § 87(2)(b) vehicle.

§ 87(2)(b) was interviewed via telephone on April 24, 2017 (See Board Review #08: § 87(2)(b)'s Statement). He stated that he was riding in § 87(2)(b) vehicle during the first incident. He was also unsure of the date of this incident. § 87(2)(b) also stated that PO Koncelik pulled them over after § 87(2)(b) made a U-turn in front of the convenience store. § 87(2)(b) heard PO Koncelik tell § 87(2)(b) that he had been pulled over for making an improper U-turn. § 87(2)(b) was not present during the incident on March 10, 2017.

PO Koncelik was interviewed at the CCRB on May 5, 2017. PO Woods was interviewed at the CCRB on May 12, 2017 (See Board Review #09-10: MOS Statement). Both officers recalled the incident on March 10, 2017, but denied any knowledge of the earlier incident. Both officers denied that they were on duty at 10:00 p.m. on February 27, 2017. PO Koncelik ended his tour that day at 4:35 p.m., while PO Woods was RDO for the entire day. PO Koncelik acknowledged having interacted with § 87(2)(b) on several occasions before March 10, 2017, but he did not recall if he had ever conducted a vehicle stop involving § 87(2)(b) before March 10, 2017. PO Woods denied interacting with § 87(2)(b) before March 10, 2017.

Both officers recalled the incident on March 10, 2017. They both stated that they pulled § 87(2)(b) vehicle over after they observed it make a U-turn within a business district located along § 87(2)(b). No other factors contributed to the decision to stop § 87(2)(b) vehicle. While PO Koncelik and PO Woods both recalled that § 87(2)(b) vehicle had a temporary license plate displayed, they denied that its presence influenced their decision to pull § 87(2)(b) over. After the stop, both officers decided to release § 87(2)(b) with a warning rather than issuing him a summons.

A map of the area shows that the intersection of § 87(2)(b) § 87(2)(b) hosts several businesses. The convenience store at § 87(2)(b) is located at the corner of the intersection (See Board Review #11: Map).

NYC Traffic Rules §4-05 states that the operator of a motor vehicle shall not make a U-turn upon any street in a business district. NYS VTL §105 defines a business district as the territory contiguous to and including a highway within six hundred feet of a building used for business or industrial purposes (See Board Review #12: Legal Reference).

§ 87(2)(g)
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§ 87(2)(g). Therefore, it is recommended that
Allegations A, B and C be closed as **exonerated**.

Allegation D –Abuse of Authority: On March 10, 2017, at the intersection of § 87(2)(b) in Brooklyn, Police Officer Jeffrey Koncelik interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that during the vehicle stop on March 10, 2017, he took out his cell phone and recorded his interaction with the officers from the driver's seat of his vehicle. After the officers returned his identification to him and allowed him to leave, § 87(2)(b) turned his camera towards the officers' vehicle. PO Koncelik responded by shining a flashlight directly towards § 87(2)(b). This created a glare in § 87(2)(b) camera. § 87(2)(b) interpreted this to have been a deliberate effort by PO Koncelik to obstruct his recording.

§ 87(2)(b) displayed the relevant portion of his recording, shown in the SnagIt capture below (See Board Review #13: SnagIt Capture). While there is glare visible on the recording, it can be seen to be emanating from the emergency lights and headlights on the officers' marked vehicle. When this was pointed out to § 87(2)(b) he reiterated that PO Koncelik was also shining a flashlight at him during this time.



201701903 - SnagIt.mp4

PO Koncelik stated that he was likely carrying a flashlight at the time of the stop on March 10, 2017. He used it to illuminate the interior of § 87(2)(b) vehicle during the stop. PO Koncelik recalled § 87(2)(b) holding up a cell phone during the incident. He took this to mean that § 87(2)(b) was recording the incident. He did not recall shining his flashlight towards the cell phone. He did not recall taking any actions to prevent § 87(2)(b) from recording the incident.

PO Woods did not recall if PO Koncelik was holding a flashlight at any point. He recalled § 87(2)(b) holding up a cell phone during the incident, but he did not know what § 87(2)(b) was doing with the phone. He denied seeing PO Koncelik point a flashlight towards the phone.

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_____ Therefore, it is recommended that

Allegation D be closed as **unfounded**.

Allegation E –Discourtesy: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis spoke discourteously to § 87(2)(b)

Allegation G –Offensive Language: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis made remarks to § 87(2)(b) based upon race.

Allegation J –Abuse of Authority: On March 10, 2017, at the 69th Precinct stationhouse, Police Officer John Gergis threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that after he was pulled over by PO Koncelik and PO Woods on March 10, 2017, he drove directly to the 69th Precinct stationhouse to speak to a supervisor about the stop.

Nobody else accompanied him to the stationhouse. PO Koncelik and PO Woods were not present at the stationhouse at that time. § 87(2)(b) spoke to the desk officer, Lt. Joseph Shirvis. Several officers, including PO Stephanie Toussaint, PO Priscilla Valentin and PO John Gergis, were standing near Lt. Shirvis at the front desk. § 87(2)(b) complained to Lt. Shirvis that he felt that he was being harassed because PO Koncelik had repeatedly pulled him over. He was calm at the time and spoke in a normal tone of voice. During their conversation, § 87(2)(b) felt that Lt. Shirvis was unfairly taking PO Koncelik's side. He asked Lt. Shirvis, "If this officer was to kill me, your job would be to defend him still?" Once he said this, PO Gergis and several of the other officers became irate and ordered § 87(2)(b) to leave the stationhouse. PO Gergis told § 87(2)(b) "Get the fuck out." He also called § 87(2)(b) a "fucking bastard" and a "fucking monkey." He also told § 87(2)(b) "Get the fuck out of here before we lock you up." § 87(2)(b) not wanting to escalate the situation further, left the stationhouse.

PO Gergis was interviewed at the CCRB on June 9, 2017 (See Board Review #14: PO Gergis' Statement). He recalled observing § 87(2)(b) arguing with Lt. Shirvis at the stationhouse's front desk. He did not recall what they were arguing about, but recalled that § 87(2)(b) was shouting loudly. Eventually, Lt. Shirvis told § 87(2)(b) that his shouting was causing a disturbance. He ordered § 87(2)(b) to leave the stationhouse. § 87(2)(b) initially refused to go, but eventually left when Lt. Shirvis repeated his command several more times. PO Gergis did not recall telling § 87(2)(b) to leave the stationhouse himself. He did not recall telling § 87(2)(b) to "get the fuck out." He denied calling § 87(2)(b) a "bastard" or a "monkey," or telling § 87(2)(b) "Get the fuck out of here before we lock you up." He denied that he used profanity or racial slurs towards § 87(2)(b) or threatened to arrest § 87(2)(b).

Lt. Shirvis was interviewed at the CCRB on June 8, 2017 (See Board Review #15: Lt. Shirvis' Statement). Lt. Shirvis recalled § 87(2)(b) approaching him at the front desk and complaining about being pulled over earlier in the evening by PO Koncelik and PO Woods. During this conversation, § 87(2)(b) started to shout and bang his fists on a metal fence that surrounds the front desk. An officer asked § 87(2)(b) to calm down and step outside. Lt. Shirvis did not recall if he made this statement or another officer did. § 87(2)(b) then walked out of the stationhouse. PO Gergis, PO Valentin and another officer followed § 87(2)(b) outside. Lt. Shirvis did not recall who the third officer was. These officers returned a few minutes later without § 87(2)(b) but they did not tell Lt. Shirvis what had happened outside. Lt. Shirvis denied hearing any officer tell § 87(2)(b) "Get the fuck out," or, "Get the fuck out of here before we lock you up." He denied hearing any officer call § 87(2)(b) a "bastard" or a "monkey." Lt. Shirvis did not hear any officers use profanity or racial slurs towards § 87(2)(b) or threaten to arrest § 87(2)(b).

PO Toussaint was interviewed at the CCRB on June 2, 2017. PO Valentin was interviewed at the CCRB on June 28, 2017 (See Board Review #16-17: MOS Statements). Both officers stated that they did not recall the incident at the stationhouse. They did not recall any civilians coming to the stationhouse to complain about a vehicle stop, or any civilians being ordered to leave the stationhouse. They did not recall any civilians causing a commotion inside of the stationhouse. PO Toussaint and PO Valentin did not recall hearing any officer use profanity or racial slurs towards any civilians, or threaten to arrest any civilians.

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Therefore, it is recommended that Allegations E, G. and J be closed as unsubstantiated.

Allegation F –Discourtesy: On March 10, 2017, at the 69th Precinct stationhouse, officers spoke discourteously to § 87(2)(b)

Allegation H –Abuse of Authority: On March 10, 2017, at the 69th Precinct stationhouse, an officer interfered with § 87(2)(b)'s use of a recording device.

Allegation I –Force: On March 10, 2017, at the 69th Precinct stationhouse, an officer used physical force against § 87(2)(b)

§ 87(2)(b) also alleged that when he was told to leave the stationhouse, several other officers in addition to PO Gergis told him, “Get the fuck out.” § 87(2)(b) was not able to describe these officers in detail. § 87(2)(b) then took out his cell phone, intending to record the interaction. One of the officers struck the phone out of his hand, causing it to fall to the ground. The phone’s screen shattered once it hit the ground. § 87(2)(b) did not recall which officer did this. When § 87(2)(b) attempted to walk out of the building, one of the officers came up behind § 87(2)(b) and shoved him on his back. § 87(2)(b) did not see which officer had pushed him.

PO Gergis and Lt. Shirvis both denied hearing any officers using profanity during the incident. They did not recall § 87(2)(b) holding any objects or attempting to record the incident. They did not see any officer strike any objects out of § 87(2)(b) hands. They did not see any officers push § 87(2)(b) PO Toussaint and PO Valentin had no recollection of § 87(2)(b) visit to the stationhouse.

§ 87(2)(g)

Therefore, it is recommended that Allegations F, H and I be closed as officer(s) unidentified.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date